



## CERTAMARIS LEGAL DOCUMENT SYSTEM

# Independent Contractor Services and IP Assignment Agreement

Contractor terms for services, confidentiality, security and work-product ownership.

**DOCUMENT ID**

CM-LEGAL-27

**VERSION**

1.0

**ISSUE DATE**

23 August 2026

**STATUS**

CONTROLLED EXECUTION TEMPLATE

**DOCUMENT OWNER**

People Operations / Legal

**APPROVER**

Authorized CertaMaris Signatory

**DOCUMENT PURPOSE / KEY MESSAGE**

Provides a contractor agreement covering services, independent-contractor status, fees, confidentiality, security, inventions/IP assignment, data protection and termination.

**EFFECTIVE**

Upon authorized execution

**CLASSIFICATION**

CONFIDENTIAL - LEGAL

## LEGAL STATUS

# Purpose, Scope and Controlled Use

Contractor terms for services, confidentiality, security and work-product ownership.

This document has been populated with CertaMaris standing business, platform, security, privacy, AI and commercial positions. It remains a reusable execution template because the actual counterparty, transaction, fees, dates, signatures, jurisdictional corporate particulars or other deal-specific facts vary by engagement. Those fields must be completed before execution.

## CertaMaris standing facts used by this document

- Service model: negotiated business-to-business contracts; no consumer or self-service signup model is assumed by these documents
- Platform: browser-based B2B maritime cybersecurity, compliance, assurance, risk-intelligence and operational-resilience SaaS platform
- Customer owns Customer Content; CertaMaris receives only rights needed to provide, secure and support the Services.
- High-sensitivity cyber posture and vessel/facility technical content is treated as Customer Confidential Information.
- Security reporting: security@certamaris.com
- Procurement/legal-document requests: <https://certamaris.com/contact?intent=procurement>

Transaction-specific fields intentionally left for execution include the actual CertaMaris legal entity and formation jurisdiction (if not already established in the Order Form), counterparty identity, addresses, signatory names/titles, signature dates, commercial scope/fees, and any negotiated governing-law or venue choice.

TERMS / NOTICE

# Operative Provisions

CertaMaris-specific standing content for this controlled release.

## 1. Services and Scope

The applicable agreement references SOW, deliverables, schedule and standards. CertaMaris and the counterparty will apply this requirement consistently with the Agreement, CertaMaris security and data-classification controls, and applicable law. Transaction-specific names, amounts, dates, territories, deliverables, approvals and jurisdictional choices are completed in the Order Form, SOW, schedule, notice or execution block as applicable rather than pre-populated in this reusable form.

## 2. Independent Contractor Status

Contractor performs services as an independent contractor and not as an employee, partner, agent or joint venturer of CertaMaris, except for authority expressly granted in writing. Contractor is responsible for taxes, insurance and legal obligations applicable to contractor status. Nothing in this template overrides worker-classification law; the engagement must be structured consistently with actual facts and jurisdiction.

## 3. Fees and Expenses

Fees, subscription scope and billing frequency are stated in the applicable Order Form. Invoices are due Net 30 unless the applicable Order Form states otherwise. Overdue undisputed amounts may accrue a late charge at the lesser of 1.5% per month or the maximum rate permitted by law. Customer is responsible for applicable sales, use, VAT and similar transaction taxes other than taxes based on CertaMaris's net income, subject to valid exemption documentation. CertaMaris may suspend affected Services for unpaid undisputed amounts after 10 days after written notice for nonpayment of undisputed amounts. to the extent permitted by the Agreement.

## 4. Confidentiality

Each party will protect the other's Confidential Information using at least reasonable care and will use it only to perform or exercise rights under the Agreement. Customer vulnerability findings, network-zone maps, remote-access pathways, technical inventories, cyber plans and actual security posture are Customer Confidential Information. CertaMaris methodology, non-public product architecture, security materials and commercial terms are CertaMaris Confidential Information. Standard exclusions apply for information lawfully public, previously known without duty, independently developed, or rightfully received from a third party. Confidentiality duties continue for five years after disclosure or termination; trade secrets remain protected for so long as they qualify as trade secrets under applicable law. Required legal disclosures are permitted with notice where lawful.

## 5. Security and Acceptable Use

Customer will use the Services lawfully and in accordance with the Acceptable Use Policy; provide accurate scope, evidence and instructions; maintain rights and lawful bases for Customer Content; safeguard its own identities, endpoints, vessel/facility systems and integrations; review findings and AI-assisted outputs before reliance; and independently decide and validate corrective actions. CertaMaris supports assurance workflows but does not replace class, flag, port-state, legal, engineering, navigation, emergency-response or operational-safety authority.

TERMS / NOTICE

# Operative Provisions

CertaMaris-specific standing content for this controlled release.

## 6. Work Product and IP Assignment

To the extent permitted by law and as consideration for the engagement, the service provider assigns to CertaMaris all right, title and interest in work product specifically created for CertaMaris under the agreement, including source code, documentation, designs, configurations, inventions and related intellectual-property rights, excluding identified pre-existing materials. The provider will execute further documents reasonably necessary to confirm ownership. Open-source and third-party materials must be disclosed and used in accordance with CertaMaris policy and license obligations.

## 7. Pre-Existing Materials

Require disclosure and license for incorporated contractor materials. CertaMaris and the counterparty will apply this requirement consistently with the Agreement, CertaMaris security and data-classification controls, and applicable law. Transaction-specific names, amounts, dates, territories, deliverables, approvals and jurisdictional choices are completed in the Order Form, SOW, schedule, notice or execution block as applicable rather than pre-populated in this reusable form.

## 8. Open Source and Third-Party Materials

Require approval and license compliance. CertaMaris and the counterparty will apply this requirement consistently with the Agreement, CertaMaris security and data-classification controls, and applicable law. Transaction-specific names, amounts, dates, territories, deliverables, approvals and jurisdictional choices are completed in the Order Form, SOW, schedule, notice or execution block as applicable rather than pre-populated in this reusable form.

## 9. Data Protection

This section addresses personal/customer data processing as applicable. CertaMaris and the counterparty will apply this requirement consistently with the Agreement, CertaMaris security and data-classification controls, and applicable law. Transaction-specific names, amounts, dates, territories, deliverables, approvals and jurisdictional choices are completed in the Order Form, SOW, schedule, notice or execution block as applicable rather than pre-populated in this reusable form.

## 10. Representations

Authority, originality, conflicts and non-infringement. CertaMaris and the counterparty will apply this requirement consistently with the Agreement, CertaMaris security and data-classification controls, and applicable law. Transaction-specific names, amounts, dates, territories, deliverables, approvals and jurisdictional choices are completed in the Order Form, SOW, schedule, notice or execution block as applicable rather than pre-populated in this reusable form.

## 11. Indemnification / Liability

CertaMaris will defend Customer against a third-party claim that authorized use of the paid Services infringes a United States patent, copyright or trademark and will pay finally awarded damages or approved settlement amounts, subject to prompt notice, CertaMaris control of defense, cooperation, and standard exclusions for Customer Content, unauthorized modifications, combinations, instructions or continued use after notice. Customer will defend CertaMaris against third-party claims arising from Customer Content, unlawful or unauthorized use, or Customer's failure to obtain required rights. The Order Form may modify indemnity scope.

TERMS / NOTICE

# Operative Provisions

CertaMaris-specific standing content for this controlled release.

## 12. Term and Termination

The Agreement begins on the effective date stated in the applicable Order Form and continues while an Order Form remains in effect. Unless an Order Form states otherwise, a subscription renews for successive 12-month periods unless either party gives at least 30 days written notice before the then-current term ends. Either party may terminate for material breach not cured within 30 days after written notice for a material breach capable of cure.; the payment cure period is 10 days after written notice for nonpayment of undisputed amounts.. CertaMaris may suspend access for material security risk, unlawful use, Acceptable Use violations, or nonpayment, using reasonable efforts to limit impact. Insolvency and other non-curable termination rights apply as stated in the Agreement and applicable law.

## 13. Non-Solicit / Restrictive Covenants

This section includes only if lawful and specifically approved for jurisdiction. CertaMaris and the counterparty will apply this requirement consistently with the Agreement, CertaMaris security and data-classification controls, and applicable law. Transaction-specific names, amounts, dates, territories, deliverables, approvals and jurisdictional choices are completed in the Order Form, SOW, schedule, notice or execution block as applicable rather than pre-populated in this reusable form.

## 14. General and Signatures

This instrument may be executed in counterparts and by electronic signature to the extent permitted by law. The CertaMaris signatory must be authorized under the company's then-current delegation of authority. Counterparty names, addresses, signatory names/titles and signature dates are completed at execution and are intentionally not pre-populated in the reusable template.

DOCUMENT CONTROL

## Execution, Publication and Revision Record

Reusable records remain controlled; customer/counterparty signatures are completed only for the actual transaction.

| CONTROL FIELD                  | VALUE                                                                                         |
|--------------------------------|-----------------------------------------------------------------------------------------------|
| Version                        | 1.0                                                                                           |
| Issue date                     | 23 August 2026                                                                                |
| Status                         | CONTROLLED EXECUTION TEMPLATE                                                                 |
| Effective                      | Upon authorized execution                                                                     |
| Document owner                 | People Operations / Legal                                                                     |
| Approver / execution authority | Authorized CertaMaris Signatory                                                               |
| Review trigger                 | Material legal, provider, privacy, security, jurisdiction, service-model or commercial change |

### Execution / approval record

CERTAMARIS AUTHORIZED SIGNATORY / APPROVER

Legal entity / role: \_\_\_\_\_

Name / title: \_\_\_\_\_

Signature / decision: \_\_\_\_\_

Date: \_\_\_\_\_

COUNTERPARTY / SECOND APPROVER AS APPLICABLE

Legal entity / role: \_\_\_\_\_

Name / title: \_\_\_\_\_

Signature / decision: \_\_\_\_\_

Date: \_\_\_\_\_